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AS AMENDED

By: Miller of the House

Stanley of the Senate

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

2. "Eligible Guard member" means a current member of the Oklahoma National Guard in good standing who has a high school diploma or who has completed General Educational Development (GED)

requirements and who has secured admission to and enrolled in an Oklahoma educational institution;

3. "Graduate program" means a program offered by an Oklahoma educational institution that leads to the award of a master's degree;

4. "Program" means the Oklahoma National Guard Educational Assistance Program established pursuant to the provisions of this section; and

5. "Undergraduate program" means a program offered by an Oklahoma educational institution that leads to the award of an associate's degree or a baccalaureate degree.

C. There is hereby created the Oklahoma National Guard Educational Assistance Program to provide assistance to eligible Guard members who enroll in an Oklahoma educational institution. Subject to the availability of funds, the amount of assistance shall be equivalent to the amount of resident tuition, and approved mandatory fees, and program fees, academic service fees, and any other fees for courses in which the eligible Guard member is enrolled, not to exceed a maximum of eighteen (18) credit hours each semester. The amount of mandatory fees, program fees, academic service fees, and any other fees shall be jointly reviewed and approved by the Oklahoma State Regents for Higher Education and the Military Department of the State of Oklahoma before a determination to pay the fees is made.

1 1. The amount of assistance provided to an eligible Guard
2 member enrolled in an undergraduate program shall not exceed a
3 maximum of one hundred twenty (120) credit hours in pursuit of an
4 associate's degree and/or a baccalaureate degree.

5 2. Subject to the assistance for eligible Guard members
6 enrolled in undergraduate programs being fully funded, assistance
7 shall be provided to an eligible Guard member with a baccalaureate
8 degree enrolled in a graduate program. The amount of assistance
9 provided to an eligible Guard member enrolled in a graduate program
10 shall not exceed a maximum of forty (40) credit hours in pursuit of
11 a master's degree.

12 3. Assistance provided pursuant to this section shall be
13 granted without any limitation other than the amount of funds
14 available for the Program and the number of eligible Guard members
15 who apply, subject to any cap established by the Military
16 Department.

17 4. Assistance allowed by this section shall not be allowed for
18 courses taken in excess of the requirements for completion of an
19 undergraduate program or a graduate program, whichever is applicable
20 for the eligible Guard member.

21 D. Assistance provided pursuant to this section shall be
22 allocated to the Oklahoma educational institution from the Oklahoma
23 National Guard Educational Assistance Revolving Fund created
24 pursuant to Section ~~2~~ 3232 of this ~~act~~ title.

1 E. To be eligible to apply for the Program, an eligible Guard
2 member shall:

3 1. Have at least one (1) year remaining on his or her
4 enlistment contract at the beginning of any semester for which the
5 member applies for assistance pursuant to this section;

6 2. Agree in writing to complete his or her current service
7 obligation in the Oklahoma National Guard; and

8 3. Agree in writing to serve actively in good standing with the
9 Oklahoma National Guard for not less than twenty-four (24) months
10 after completion of the last semester for which the member receives
11 assistance pursuant to this section.

12 F. To retain eligibility for the Program, an eligible Guard
13 member shall:

14 1. Maintain good academic standing and satisfactory academic
15 progress according to standards of the Oklahoma educational
16 institution in which the member is enrolled;

17 2. Maintain the requirements for retention and degree
18 completion as established by the Oklahoma educational institution in
19 which the member is enrolled;

20 3. Maintain a minimum grade point average of 2.0 on a 4.0
21 scale; ~~and~~

22 4. Maintain satisfactory participation in the Oklahoma National
23 Guard; and

1 5. Possess a Military Occupational Specialty (MOS) or Air Force
2 Specialty Code (AFSC) after his or her first semester.

3 G. An eligible Guard member seeking assistance pursuant to the
4 provisions of this section shall submit an application on a form
5 prescribed by the Military Department of the State of Oklahoma to
6 the Educational Service Office of the Military Department prior to
7 the semester for which assistance is sought. The Military
8 Department may establish a cap on the number of **eligible Guard**
9 **members allowed to participate per semester per undergraduate or**
10 **graduate program.** The eligible Guard member's Commander or his or
11 her designee shall confirm a member's standing and eligibility to
12 the Oklahoma educational institution in which the student is
13 enrolled.

14 H. The eligible Guard member's Commander may deny an
15 application submitted by an eligible Guard member for continued
16 Program assistance if he or she fails to comply with the provisions
17 of paragraph 1, 2, ~~or~~ 3, 4, or 5 of subsection F of this section.

18 I. An eligible Guard member who has received Program assistance
19 pursuant to the provisions of this section and who fails to comply
20 with the provisions of paragraph 4 of subsection F of this section
21 shall be required to repay an amount to be calculated as follows:

22 1. Determine the total amount of assistance provided pursuant
23 to the provisions of this section;
24

1 2. Divide the amount determined in paragraph 1 of this
2 subsection by twenty-four (24); and

3 3. Multiply the amount determined in paragraph 2 of this
4 subsection by the number of months the member did not fulfill the
5 requirements of paragraph 4 of subsection F of this section.

6 Repayments shall be deposited into the Oklahoma National Guard
7 Educational Assistance Revolving Fund created pursuant to Section ~~2~~
8 3232 of this ~~act~~ title.

9 J. An eligible Guard member who has received Program assistance
10 pursuant to the provisions of this section and who fails to comply
11 with the provisions of paragraph 4 of subsection F of this section
12 due to hardship circumstances may request a waiver from repayment.
13 A waiver request shall be submitted in writing to the Adjutant
14 General.

15 K. By July 1 annually, the Oklahoma State Regents for Higher
16 Education shall notify the Adjutant General of the amount of funding
17 available in the Oklahoma National Guard Educational Assistance
18 Revolving Fund created pursuant to Section ~~2~~ 3232 of this ~~act~~ title.

19 L. The Oklahoma State Regents for Higher Education shall
20 promulgate rules to implement the provisions of this act including
21 deadlines for submission of applications required by subsection G of
22 this section. The Military Department of the State of Oklahoma
23 shall promulgate regulations pertaining to the application process
24 and the determination of eligibility for the assistance program.

1 The Oklahoma State Regents for Higher Education and Military
2 Department shall coordinate the promulgation of rules and
3 regulations to ensure compatibility. The Adjutant General may
4 promulgate regulations to implement the provisions of this act.

5 SECTION 2. This act shall become effective **July 1, 2025.**

6 **SECTION 3. It being immediately necessary for the preservation**
7 **of the public peace, health or safety, an emergency is hereby**
8 **declared to exist, by reason whereof this act shall take effect and**
9 **be in full force from and after its passage and approval.**

10 COMMITTEE REPORT BY: COMMITTEE ON EDUCATION
11 April 22, 2025 - DO PASS AS AMENDED
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